

LAW OFFICES OF
THOMAS J. WAGNER, LLC
www.wagnerlaw.net

GABRIEL C. MAJOR

Direct Dial: (215) 979-8712

Email: gmajor@wagnerlaw.net

PENNSYLVANIA OFFICE
8 PENN CENTER, 6TH FLOOR
1628 JOHN F. KENNEDY BOULEVARD
PHILADELPHIA, PA 19103
TEL: (215) 790-0761
FAX: (215) 790-0762

NEW JERSEY OFFICE
FIVE GREENTREE CENTRE, SUITE 104
525 ROUTE 73 NORTH
MARLTON, NJ 08053
TEL: (856) 241-7785
FAX: (856) 241-7786

**PLEASE REPLY TO:
PHILADELPHIA OFFICE**

January 11, 2017

Via Email and FedEx

Assistant Secretary Rachel Dickon

FEDERAL MARITIME COMMISSION

800 N. Capitol Street N.W., Room 1046

Washington, DC 20573

**RE: D.F. Young, Inc. vs. NYK Line (North America), Inc.
Docket No.: 16-02
Our File No.: 9004-2695
Complainant's Motion for Summary Judgment**

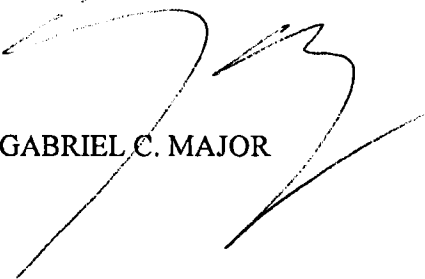
Dear Ms. Dickon:

Enclosed please an original and five (5) copies of the "Public Version" of Complainant's Statement of Material Facts and Motion for Summary Judgment in the above-referenced matter for filing, as our Statement and Motion contain confidential information and documentation. Our previous correspondence regarding the "Confidential Version" of this Motion mistakenly indicated that this "Public Version" was included with that mailing. We apologize for any confusion caused by that mistake.

The "Public Version," as described in 46 C.F.R. 502.5(a)(ii), includes a cover page marked as "Public Version – confidential materials excluded," as well as with confidential portions white-out redacted and exhibits with pages marked as "Public Version – confidential materials excluded" replacing each page of Exhibits A-Q, Exhibits T-AA, and Exhibits FF-HH.

Rachel Dickon, Assistant Secretary
Federal Maritime Commission
January 11, 2017
Page 2

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'GABRIEL C. MAJOR', written over the printed name.

GABRIEL C. MAJOR

Enclosures

cc: Paul Keane, Esq. (via email)
Joseph De May, Jr., Esq. (via email)

**PUBLIC VERSION -
Confidential materials
excluded.**

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO.:16:02

D.F. YOUNG, INC.,

COMPLAINANT

V.

NYK LINE (NORTH AMERICA) INC.,

RESPONDENT

ORDER

AND NOW, on this the _____ day of _____, 2017, upon consideration of the Motion for Summary Judgment filed by Complainant D.F. Young, Inc., and any and all responses and replies thereto, it is hereby **ORDERED** that the Motion is **GRANTED**; it is further

ORDERED that summary judgment is hereby entered in favor of Complainant D.F. Young, Inc. against Respondent NYK Line (North America) Inc. in the amount of \$537,213.33, plus interest at the applicable legal rate; it is further

ORDERED that Complainant D.F. Young, Inc. shall be awarded attorney's fees upon separate application to the Commission.

Erin M. Wirth
Administrative law Judge

**BEFORE THE
FEDERAL MARITIME COMMISSION**

D.F. YOUNG, INC.,	:	
Complainant,	:	
v.	:	
NYK LINE (NORTH AMERICA), INC.,	:	DOCKET NO.: 16-02
Respondent.	:	

**COMPLAINANT D.F. YOUNG, INC.’S STATEMENT OF MATERIAL FACTS
IN SUPPORT OF ITS MOTION FOR SUMMARY JUDGMENT**

Complainant, D.F. Young, Inc. (“Complainant”), by and through its undersigned counsel, and pursuant to 46 CFR §502.70(a) submits this Statement of Material Facts (“SMF”) in support of its Motion for Summary Judgment (“Motion”) because Complainant is entitled to summary judgement in it’s favor and against Respondent on its Freight Forwarder Compensation claim because Complainant has performed freight forwarding services and satisfies the requirements of Section 40904 of the Shipping Act and 46 CFR §§515.42, *et seq.*

Contrariwise, Respondent has no legitimate defense to the claim other than the fact that they simply do not want to pay freight forwarders compensation provided under their Tariff. is SMF demonstrates that there is no genuine dispute that Complainant performed the services described in Respondent’s applicable, published tariff and in the corresponding sections of the Shipping Act and FMC regulations meriting freight forwarder compensation and that no agreement was reached by any party to waive such compensation.

Complainant will rely upon the following Exhibits in support of this Motion:

- A.
- B.
- C.

D.

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A. Respondent's Tariff

1. Respondent is an international ocean common carrier that, *inter alia*, transports vehicles from various shippers across the world on "Roll on/roll off," or "Ro-Ro" vessels.
2. At all relevant times (up to and including November 2, 2016), Respondent had a tariff in effect specifically related to the shipment of "Worldwide Roll-on/Roll-off Cargo": Tariff NYKS 156 ("the Tariff"). (**Exhibit "A"**, No. 1). The Tariff included a Rule 9 provision for the payment of freight forwarder compensation. (**Exhibit "B"**)

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..... POWER ASSISTED HYDRAULIC JACKS

B. Ford Freight Forwarding Prior to Complainant

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D. Complainant Freight Forwarding on Ford Shipments

Page 10

50. Complainant's employees that have directly interacted with Respondent and Wallenius personnel in performing freight forwarder services related to Ford shipments on Respondent's vessels, including the exchange of EDI messages and related documents, include:

Melissa Oleszkowicz, Kizzy Adams, Marissa Howard, Michele Phillips, Pamela Tarys, Crystal Karriem, Judy Smith-Glenn, Sonja Williams, Darlene Schwark, Mary Mayle, Andrea Aldenbrand, and Jennifer Balthis. (See Complainant's Responses to Respondent's Interrogatories, attached as **Exhibit "Q"**, No. 12).

51. Ford vehicles could not ship on Respondent's vehicles without Complainant's booking them there and providing the shipping instructions; unless Respondent or another provider performed the same work as Complainant. (Exhibit "D", 126:18-25; Exhibit "G", 73:18-74:6, 74:25-75:11; Exhibit "H", 84:11-16).

53. At all times relevant to the present action, Complainant has been licensed as a freight forwarder by the Federal Maritime Commission and has been licensed as a customhouse broker by the U.S. Treasury Department. (Exhibit “A”, Nos. 7-11; **Exhibit “R”**; and **Exhibit “S”**).

54. Complainant has had no beneficial interest in any Ford cargo shipped on Respondent’s vessels for which Complainant provided freight forwarding services. (Exhibit “A”, No. 19; and **Exhibit “T”**, No. 12).

55. Complainant never asked Respondent to perform any freight forwarding services for Ford shipments Respondent’s vessels; and Respondent never performed any such services. (**Exhibit “A”**, No. 23; **Exhibit “T”**, 11).

E. The NYK/DFY Power of Attorney Agreement

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H. Complainant's Demands for Freight Forwarder Compensation

75. Complainant served Respondent with several demands for freight forwarder compensation. (See, **Exhibit “BB”**, Exhibits “A”-“N”; see also, **Exhibit “CC”**). The parties entered into an agreement on August 10, 2016 that further formal demands were unnecessary. (See **Exhibit “DD”**).
76. With each demand, Complainant provided copies of its Federal Maritime Commission Freight Forwarder License, its U.S. Treasury Department Customhouse Broker License, the individual bills of lading for which Complainant sought compensation, reference charts for each shipment, a separate summary of applicable freight charges and freight forwarding compensation due along with a Certification in compliance with 46 CFR §515.42 and 46 U.S.C. §40904. (Exhibit “BB”, ¶¶23-41; Exhibit “CC”; and **Exhibit “EE”**, ¶¶23-41).
77. Respondent has wrongfully denied Complainant's demands for freight forwarder compensation on Ford shipments while continuing to pay Complainant freight forwarder compensation on GM shipments. (Exhibit “BB”, ¶¶28, 41; Exhibit “EE”, ¶¶28, 41).
79. The only explanation given by Respondent to Complainant for its denial of Complainant's demands for freight forwarder compensation (until the filing of the subject lawsuit) was

the indication in the February 27, 2015 email from Gary Hurley to Robert Tracy that Respondent does not view the services provided by Complainant as being of a freight forwarder. (Exhibit “H”, 267:18-269:21; Exhibit “W”, p.15).

80. Respondent claims it still does not know what Complainant’s actual activities and responsibilities are with respect to Ford shipments on Respondent’s vessels and does not know who is using the Ford GLADS system to exchange EDI messages with Respondent because Complainant’s employees use Ford email addresses. (Exhibit “H”, 119:4-15, 131:1-24, 132:20-133:13; see also, **Exhibit “FF”** – identifying telephone numbers and emails addresses only for Complainant employees (as explained in Exhibit “Q”).

I. Respondent’s November 2, 2016 Tariff Revocation

J. Compensation Due

COMPLAINANT D.F. YOUNG, INC.'S MOTION FOR SUMMARY JUDGMENT

Complainant, D.F. Young, Inc. (“Complainant”), by and through its undersigned counsel, and pursuant to 46 CFR §502.70 hereby moves for summary judgment against Respondent, NYK Line (North America), Inc. (“Respondent”).

I. AUTHORITY

A. Summary Judgment Standard

Summary judgment is appropriate when the pleadings and the record demonstrate that “there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law.” Fed.R.Civ.P. 56 (as made applicable by 46 CFR §502.12). The party seeking summary judgment may support its motion by “identifying those portions of ‘the pleadings, answers to interrogatories, and admissions on file, together with the affidavits, if any,’ which it

believes demonstrate the absence of a genuine issue of material fact. *Celotex Corp. v. Catrett*, 477 U.S. 317, 323 (1986). The administrative law judge must view the facts in the light most favorable to the nonmoving party, giving the nonmoving party the benefit of all justifiable inferences derived from the evidence in the record. *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 248-249 (U.S. 1986). However, the mere existence of some alleged factual dispute will not defeat a properly supported motion for summary judgment because Fed.R.Civ.P. 56 requires “that there be no *genuine* [dispute] of *material* fact.” *Id.* at 247-248 (emphasis added). A dispute over a material fact is “genuine” only if “the evidence is such that a reasonable jury could return a verdict for the nonmoving party. *Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.*, 32 S.R.R. 1185 (FMC 2013). The burden on the party opposing summary judgment is “to show specific facts, as opposed to general allegations, that present a genuine issue worthy of trial.” *Id.* Complainant submits that there is no genuine issue of fact and that it is entitled to summary judgment as a matter of law.

B. Ocean Carrier Tariffs

Ocean freight forwarder tariffs are governed by the Shipping Act of 1984 as amended by the Ocean Shipping Reform Act of 1998, 46 U.S.C. §§40101, *et seq.*, (“the Shipping Act”) and 46 CFR §§520.1, *et seq.*

Title 46 U.S.C. Section 40501 states:

Each common carrier and conference shall keep open to public inspection in an automated tariff system, tariffs showing all its rates, charges, classifications, rules, and practices between all points or ports on its own route and on any through transportation route that has been established.

46 U.S.C. §40501(a)(1). Section 40501 also states that “[a] tariff under subsection (a) shall ... state the level of compensation, if any, of any ocean freight forwarder by carrier or conference; ...” 46 U.S.C. §40501(b)(3).

The Federal Maritime Commission has promulgated regulations pursuant to the Shipping Act in order to, *inter alia*, “ensure that carrier tariff publications are accurate and accessible and to protect the public from violations by carriers of section 10 of the Act (46 U.S.C. 41101-41106),” and to allow the Commission to review and monitor the activities of controlled carriers pursuant to section 9 of the Act (46 U.S.C. 40701-40706). 46 CFR §520.1(b)(3)-(4). The Commission requires that published tariffs “[s]tate the level of ocean transportation intermediary, as defined by section 3(17)(A) of the Act (46 U.S.C. 40102(18)), compensation, if any, to be paid by a carrier or conference.” 46 CFR §520.4(a)(3). The Commission also requires tariffs to include “sample copies of any bill of lading, contract of affreightment or **other document evidencing the transportation agreement** and copies of any loyalty contract, omitting the shipper's name. 46 CFR §520.4(a)(5)-(6). Ocean transportation tariffs are also required to include “any rule that affects the application of the tariff.” 46 CFR §520.4(d) (emphasis added).

Though the Commission does except tariff requirements on shipments of “bulk cargo, forest products, recycled metal scrap, new assembled motor vehicles, waste paper and paper waste,” “[c]arriers or conferences which voluntarily publish tariff provisions covering otherwise exempt transportation thereby subject themselves to the requirements of this part, including the requirement to adhere to the tariff provisions.” 46 CFR §520.13(c)(1). The Commission defines “new assembled motor vehicles” exempted from tariff filing requirements as “a wheeled vehicle whose primary purpose is ordinarily **the**

non-commercial transportation of passengers, including an automobile, pickup truck, minivan, or sport utility vehicle.”.” 46 CFR §520.2. (emphasis added).

C. Freight Forwarder Compensation

Section 40904 of the Shipping Act provides for Freight Forwarder Compensation “[] when the ocean freight forwarder has certified in writing that it holds an ocean transportation intermediary’s license (if required under section 40901 of this title [46 U.S.C. §40901]) and has (1) engaged, booked, secured, reserved, or contracted directly with the carrier or its agent for space aboard a vessel or confirmed the availability of that space; and (2) prepared and processed the ocean bill of lading, dock receipt, or other similar document for the shipment.” 46 U.S.C. §40904(a). Section 40904 also states that “[a]n ocean freight forwarder may not receive compensation from a common carrier for a shipment in which the ocean freight forwarder has a direct or indirect beneficial interest.” 46 U.S.C. §40904(c).

Section 515.42(c) provides

When a licensed freight forwarder is entitled to compensation, the forwarder shall provide the common carrier with a certification which indicates that the forwarder has performed the required services that entitle it to compensation. The required certification may be provided electronically by the forwarder or may be placed on one copy of the relevant bill of lading, a summary statement from the forwarder, the forwarder's compensation invoice, or as an endorsement on the carrier's compensation check. Electronic certification must contain confirmations by the forwarder and the carrier identifying the shipments upon which forwarding compensation may be paid. Each forwarder shall retain evidence in its shipment files that the forwarder, in fact, has performed the required services enumerated on the certification. The certification shall read as follows:

The undersigned hereby certifies that neither it nor any holding company, subsidiary, affiliate, officer, director, agent or executive of the undersigned has a beneficial interest in this shipment; that it is the holder of valid FMC License No. __, issued by the Federal Maritime Commission and has performed the following services:

- (1) Engaged, booked, secured, reserved, **or** contracted directly with the carrier or its agent for space aboard a vessel **or** confirmed the availability of that space; and
- (2) Prepared and processed the ocean bill of lading, dock receipt, or other similar document with respect to the shipment.

46 CFR §515.42(c) (emphasis added). Section 515.42 forbids freight forwarders from “accept[ing] compensation from a common carrier which is different from that specifically provided for in the carrier's effective tariff(s).” 46 CFR §515.42(d). Section 515.42 also forbids freight forwarders from receiving compensation from ocean carriers with respect to shipments in which the forwarder has a beneficial interest or when the ocean carrier has performed forwarding services at the forwarder’s request. 46 CFR §515.42(f) and (i).

Section 515.42 specifically allows freight forwarders to “own, operate, or otherwise maintain or supervise an electronic data interchange-based computer system in its forwarding business” and still be entitled to carrier compensation. 46 CFR §515.42(e).

D. Service Contracts

The Shipping Act allows ocean carriers to enter into service contracts with shippers, though it generally requires that such agreements be confidentially filed with the Commission, which will in turn cause a statement of the contract’s essential terms to be published and made public in a tariff format to the general public. 46 U.S.C. §40502(a)-(d). The Shipping Act exempts contracts regarding “new assembled motor vehicles” from filing requirements. 46 U.S.C. §40502(b)(2).

The Commission promulgated 46 CFR 530.1 *et seq.* in order to facilitate filing of service contracts described in 46 U.S.C. §40502 and to enable the Commission to review and ensure that such contracts and the parties to them comport with requirements of the Shipping Act. 46 CFR §530.1. The Commission generally imparts a duty on ocean carriers to file service contracts and to publish a statements of essential terms of such contracts. 46 CFR §530.5, 530.8, and 530.12. The Commission exempts service contracts for the shipment of “new assembled motor vehicles” from filing/publishing requirements, again defining a “new assembled motor vehicle” as “a wheeled vehicle whose primary

purpose is ordinarily the **non-commercial transportation** of passengers, including an automobile, pickup truck, minivan or sport utility vehicle.” 46 CFR §530.3(m) (emphasis added).

Contracts for carriage of goods by sea must be construed like any other contracts: by their terms and consistent with the intent of the parties. *Norfolk Southern Ry. v. James N. Kirby, Pty Ltd.*, 543 U.S. 14, 31 (U.S. 2004). If parties intend to extend the terms and effect of shipping contracts to third parties, it must be presumed that they would in some way have expressed it in the contract. (See *id.*). To the extent a third-party qualifies as an intended beneficiary, it may enforce contract terms in its favor, but qualifying as an intended beneficiary in no way creates contractual obligations on the part of the intended beneficiary. (See *CNA Ins. Co. v. Hyundai Merch. Marine Co., Ltd.*, 747 F.3d 339, 372 (6th Cir. Ky. 2014)). A third-party beneficiary can only be bound by the terms of a contract if the third party exhibited acceptance to be so bound and through an agency relationship with one of the contracting parties. (See *id.*).

U.S. Courts recognize that shippers and carriers cannot contract to bind unconsenting third parties. *Stein Hall & Co. v. S.S. Concordia Viking*, 494 F.2d 287, 291 (2d Cir. N.Y. 1974). Moreover, supersession clauses of transportation agreements cannot be asserted against third parties that are strangers to their terms. (See *Atl. Container Line AB v. Volvo Car Corp.*, 2014 U.S. Dist. LEXIS 139448, *20 (S.D.N.Y. 2014); *Roby v. Corporation of Lloyd's*, 996 F.2d 1353, 1360 (2d Cir. N.Y. 1993); *Asoma Corp. v. SK Shipping Co.*, 467 F.3d 817, 826-827 (2d Cir. N.Y. 2006); *Coutinho & Ferrostaal, Inc. v. M/V Spar Taurus*, 2010 U.S. Dist. LEXIS 83645 (S.D.N.Y. Aug. 14, 2010); *AIG Eur. S.A. v. Franco Vago Int'l, Inc.*, 756 F. Supp. 2d 369, 377 (S.D.N.Y. 2010)).

Ocean transportation intermediaries are not shippers' agents in every sense; "that would be unsustainable." (See *Kirby*, 543 U.S. at 33). Such an intermediary acts for the shipper's "agent for a single, limited purpose." *CAN Ins. Co.*, 747 F.3d. at 373).

II. ARGUMENT

- A. **There is no genuine dispute that Complainant has performed freight forwarding services on Ford shipments meriting compensation under Respondent's tariff and applicable law.**

B. Neither Ford nor Complainant has waived Complainant's right to freight forwarder compensation from Respondent.

Respondent amended its Answer to Complainant's Verified Complaint to add the affirmative defense that the existence of two separate service contracts between Ford and Respondent during the time Complainant has acted as freight forwarder on Ford shipments on Respondent's vessels disqualifies Complainant from freight forwarder compensation on those shipments. (See Exhibit "EE", p. 11). This defense, in effect, asserts that either Ford or Complainant has waived what freight forwarder compensation would otherwise be due Complainant. This defense mischaracterizes the understanding of the parties to the Ford/NYK Service Contracts as to whether they were waiving freight forwarder compensation and incorrectly attempts to extend the terms of ocean carriage contracts to third parties.

III. CONCLUSION

Respectfully submitted,

LAW OFFICES OF THOMAS J. WAGNER, LLC

Date: January 9, 2017

By: /s/ Thomas J. Wagner, Esq.

Thomas J. Wagner, Esquire
Law Offices of Thomas J. Wagner, LLC
8 Penn Center, 6th Floor
1628 John F. Kennedy Blvd.
Philadelphia, PA 19103
tjwagner@wagnerlaw.net
Tel.: 215.790.0761
PA Bar ID No. 52876
Attorneys for Complainant, D. F. Young, Inc.

BEFORE THE FEDERAL MARITIME COMMISSION

D.F. YOUNG, INC.,	:	
Complainant,	:	
v.	:	
NYK LINE (NORTH AMERICA), INC.,	:	DOCKET NO.: 16-02
Respondent.	:	

CERTIFICATE OF SERVICE

The undersigned certifies that on the date noted below he served a true and correct copy of the foregoing Public Version of Complainant D.F. Young, Inc.'s Motion for Summary Judgment via Fed Ex Overnight and email on the following at the addresses provided:

Paul M. Keane
Joseph De May, Jr.
Cichanowicz Callan Keane & De May, LLP
50 Main Street, Suite 1045
White Plains, NY 10606
pkeane@cckd-ny.com
jdemay@cckd-ny.com

Attorneys for Respondent, NYK Line (North America), Inc.

Respectfully submitted,

LAW OFFICES OF THOMAS J. WAGNER, LLC

Date: January 11, 2017

By: /s/ Thomas J. Wagner, Esq.
Thomas J. Wagner, Esquire
Law Offices of Thomas J. Wagner, LLC
8 Penn Center, 6th Floor
1628 John F. Kennedy Blvd.
Philadelphia, PA 19103
tjwagner@wagnerlaw.net
Tel.: 215.790.0761
PA Bar ID No. 52876
Attorney for Complainant, D. F. Young, Inc.

EXHIBIT A

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EXHIBIT R

Federal Maritime Commission

Washington, D. C. 20573-0001

OCEAN TRANSPORTATION INTERMEDIARY LICENSE OCEAN FREIGHT FORWARDER

NO. 656F

THIS IS TO CERTIFY THAT

DANIEL F. YOUNG, INC.

is the holder of an Ocean Transportation Intermediary License and, as such, is duly authorized to carry on the business of providing freight forwarder services to facilitate shipment via an oceangoing common carrier from the United States, its territories or possessions to foreign countries.

This license is conferred pursuant to the authority contained in Section 19 of the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998, and is subject to the provisions of said Act, Part 515 of Title 46 of the Code of Federal Regulations as it is or may be amended, and the pertinent provisions of other applicable regulations promulgated under the foregoing Act.

By authority of the Federal Maritime Commission

Director

Bureau of Tariffs, Certification and Licensing

Effective: MAY 1 1999

EXHIBIT S

LICENSE FOR CUSTOMHOUSE BROKER

TREASURY DEPARTMENT
BUREAU OF CUSTOMS
WASHINGTON, D. C.

Serial No. 1259

This is to certify, That Daniel F. Young, Incorporated, of New York, N.Y.,

having furnished satisfactory evidence that _____ the corporation is _____ entitled to a license as a *Customhouse Broker*, under the provisions of Section 641 of the Tariff Act of 1930 and the Regulations pursuant thereto, is hereby Licensed to transact business as a Customhouse Broker, in Customs Collection District No. 19.



Given under my hand and official seal at Washington, D. C.,
this 16th day of September, 1932

5-4056 U. S. GOVERNMENT PRINTING OFFICE: 1930

Commissioner of Customs.

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EXHIBIT BB

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO.: _____

D.F. YOUNG, INC.,

**1235 Westlakes Drive
Suite 255
Berwyn, PA 19312.**

COMPLAINANT

V.

NYK LINE (NORTH AMERICA) INC.,

**300 Lighting Way
5th Floor
Secaucus, NJ 07094**

RESPONDENT

VERIFIED COMPLAINT

**Thomas J. Wagner, Esq.
Law Offices of Thomas J. Wagner, LLC
8 Penn Center, 6th Floor
1628 John F. Kennedy Boulevard
Philadelphia, PA 19103
Attorney for Complainant**

VERIFIED COMPLAINT

Complainant, D.F. Young, Inc. ("Complainant" or "DFY") files this Verified Complaint against Respondent, NYK Line (North America), Inc. ("Respondent" or "NYK") pursuant to the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998 ("the Shipping Act"), 46 U.S.C. §§ 40101, *et seq.*, the Federal Maritime Commission ("FMC")'s authority under 46 U.S.C. §41301, and pursuant to FMC regulation 46 CFR §515.

I. COMPLAINANT

1. Complainant is a corporation organized and existing under the laws of the Commonwealth of Pennsylvania.
2. Complainant's principal place of business is 1235 Westlakes Drive, Suite 255, Berwyn, PA 19312.
3. Complainant is in the business of providing services as an ocean transportation intermediary as defined and described in 46. U.S.C. §40102(19) and 46 CFR §515.2(m), operates as a non-vessel operating common carrier ("NVOCC") as defined and described in 46. U.S.C. §40102(16) and 46 CFR §515.2(k), and as licensed by the FMC under License No. 656F.
4. Complainant has a Customhouse Broker License, License No. 1259.

II. RESPONDENT

5. Respondent is, upon belief and information, a corporation organized and existing under the laws of the State of New York, with a principal place of business at 300 Lighting Way, 5th Floor, Secaucus, NJ 07094.

6. Respondent is a common carrier of goods by water for hire, as defined and described in 46 U.S.C. §§40102(6) and 40102(17), as well as 46 CFR §§515.2(e) and (l).

III. JURISDICTION

7. The FMC has jurisdiction over this Complaint pursuant to 46 U.S.C. §§41301, *et seq.* and pursuant to 46 U.S.C. §§40904, 41102, and 41104, as well as 46 CFR §515.42, as Complainant seeks reparations related to freight forwarding compensation withheld by Respondent that is required by Respondent's applicable tariffs.

IV. STATEMENT OF FACTS AND MATTERS COMPLAINED OF

A. TARIFFS

8. At all times applicable to the facts alleged in this Complaint, Respondent had tariffs in effect that established the rate and requirements for compensation to entities providing freight forwarding services on shipments accepted by Respondent as a common carrier.
9. Such tariffs stated, "[e]xcept as otherwise provided, compensation to a freight forwarder shall be one-and-one-fourth percent (1.25%) of the applicable freight rates and Outport Arbitraries to ports" named in said tariffs."
10. Such tariffs also stated that "[p]ursuant to the United States Tariff Act of 1986, Carriers shall pay freight forwarder compensation on all Bill of Lading charges when such compensation is claimed by an FMC Licensed Freight Forwarder which is also a Treasury Department Licensed Customs House Broker."
11. Such tariffs further provide that "[c]laims for freight forwarder compensation must be presented to the Carrier within six (6) months of the sailing of the vessel from the port at which the cargo in question was loaded."

B. COMPLAINANT FREIGHT FORWARDING

12. Beginning on or about March 25, 2015, Complainant performed freight forwarding services related to shipments of automobiles from the Ford Motor Company and its affiliated companies ("Ford") by, *inter alia*, arranging for shipment of such vehicles on vessels owned and/or operated by Respondent and/or its agents or affiliates.
13. On or about April 2, 2015, Complainant and Respondent entered into an Agreement in order to simplify the issuance of bills of lading for transportation of shipments from Ford by Complainant on Respondent's vessels ("the Agreement").
14. Though Respondent proposed a paragraph to the Agreement which would have waived any brokerage or freight forwarder compensation, Complainant expressly refused to include such a provision.
15. The Agreement included an integration clause that stated that "[t]his Agreement sets forth the complete understanding and agreement of the parties, and can be amended only in writing signed by the party against whom enforcement is sought."
16. The freight forwarding services performed by Complainant included engaging, booking, securing, reserving, and/or contracting directly with Respondent and/or its agents for space aboard its/their vessels and/or confirmed availability of that space for Ford shipments.
17. Furthermore, Complainant prepared and processed the ocean bills of lading and related documents respective of Ford shipments placed on Respondent's vessels.
18. Complainant had no beneficial interest in any of the Ford shipments for which it performed freight forwarding services and for which it arranged shipment on Respondent's vessels.
19. At all relevant times, Complainant held a valid FMC license.

20. To date, Complaint has provided freight forwarding services on hundreds of Ford shipments placed on Respondent's vessels, and continues to do so.
21. The freight charges Respondent has received from Ford shipments placed on its vehicles as a result of Complainant's freight forwarding to date exceed \$20,000,000.00.
22. To date, Respondent has provided no compensation to Complainant for any of the freight forwarding services performed on any of the Ford shipments placed on the vessels of Respondent and/or its agents or affiliates.

C. DEMANDS FOR COMEPENSATION

First Demand for Compensation

23. On or about September 24, 2015, Complainant, through the undersigned, served Respondent with a demand ("the First Demand") for freight forwarding compensation in the amount of **\$129,592.28**, plus 1.25% of any accessorial charges, port charges, heavy lift and long length charges, origin receiving charges, destination delivery charges, rental fees, and/or surcharges related to certain Ford shipments placed on Respondent's vessels, pursuant to the terms of Rule 9 of Respondent's applicable tariff, 46 CFR §§515.41, 515.42, and 46 U.S.C. §§40904 and 41102 *et seq.* (See Demand Letter dated September 24, 2015, **Attachment A**).
24. Enclosed with the First Demand was an executed Certification by Denise Traynor, Complainant's Chief Financial Officer, in compliance with the requirements of 46 CFR §515.42 and 46 U.S.C. §40904. (See Certification of Denise Traynor dated September 24, 2015, **Attachment B**).
25. Also enclosed with the First Demand was a copy of Complainant's FMC Ocean Transportation Intermediary/Ocean Freight Forwarder License. (See FMC Ocean

Transportation Intermediary/Ocean Freight Forwarder License No. 656F, **Attachment C**).

26. Also enclosed with the First Demand was a copy of Complainant's License for Customhouse Broker from the U.S. Treasury Department, Bureau of Customs. (See License for Customhouse Broker Serial No. 1259, **Attachment D**).

27. Also enclosed with the First Demand were copies of all of the individual bills of lading for shipments for which Complainant sought compensation, along with reference charts for each shipments, and a separate summary of the applicable, total freight charges and freight forwarding charges for those bills of lading. (See Bills of Lading Reference Charts, **Attachment E**, and Summary of Charges, **Attachment F**).

28. Respondent subsequently denied Complainant's First Demand.

Second Demand for Compensation

29. On or about December 22, 2015, Complainant, again through the undersigned, served Respondent with a second demand for compensation ("the Second Demand"). (See Demand Letter dated December 22, 2015, **Attachment G**).

30. The Second Demand included the previously demanded sum of \$129,592.28 and subsequent freight forwarding charges in the amount of **\$73,588.58**, for a total of **\$203,180.86**, together with 1.25% of any accessorial charges, port charges, heavy lift and long length charges, origin receiving charges, destination delivery charges, rental fees, and/or surcharges related to certain Ford shipments placed on Respondent's vessels not referenced in Complainant's First Demand.

31. All additional shipments for which freight forwarder compensation was sought in the Second Demand took place within 6 months of service of the Second Demand.

32. The Second Demand included an executed Certification by Denise Traynor, Complainant's Chief Financial Officer, in compliance with the requirements of 46 CFR §515.42 and 46 U.S.C. §40904. (See Certification of Denise Traynor dated December 15, 2015, **Attachment H**).
33. The Second Demand also included the FMC Ocean Transportation Intermediary/Ocean Freight Forwarder License and Customhouse Broker License already provided to Respondent in the First Demand.
34. The Second Demand also included copies of all of the individual bills of lading for shipments for which Complainant sought compensation (excluding the bills of lading included in the First Demand), along with reference charts for such shipments, and a separate summary of the applicable, total freight charges and freight forwarding charges for the bills of lading referenced in the Second Demand. (See Bills of Lading Reference Charts, **Attachment I**, and Summary of Charges, **Attachment J**).

Third Demand for Compensation

35. On or about January 13, 2016, Complainant, again through the undersigned, served Respondent with a third demand for compensation ("the Third Demand"). (See Demand Letter dated January 12, 2016, **Attachment K**).
36. The Second Demand included the previously demanded sum of \$203,180.86 and subsequent freight forwarding charges in the amount of \$49,596.03 for an updated total of \$252,776.89, together with 1.25% of any accessorial charges, port charges, heavy lift and long length charges, origin receiving charges, destination delivery charges, rental fees, and/or surcharges related to certain Ford shipments placed on Respondent's vessels not referenced in

Complainant's First or Second Demand.

37. All additional shipments for which freight forwarder compensation was sought in the Third Demand took place within 6 months of service of the Third Demand.
38. The Third Demand included an executed Certification by Denise Traynor, Complainant's Chief Financial Officer, in compliance with the requirements of 46 CFR §515.42 and 46 U.S.C. §40904. (See Certification of Denise Traynor dated January 13, 2016, **Attachment L**).
39. The Third Demand also included the FMC Ocean Transportation Intermediary/Ocean Freight Forwarder License and Customhouse Broker License already provided to Respondent in the First and Second Demand.
40. The Third Demand also included copies of all of the individual bills of lading for shipments for which Complainant sought additional compensation (excluding the bills of lading included in the First or Second Demand), along with reference charts for such shipments, and a separate summary of the applicable, total freight charges and freight forwarding charges for the bills of lading referenced in the Third Demand. (See Bills of Lading Reference Charts, **Attachment M**, and Summary of Charges, **Attachment N**).
41. To date, Respondent has yet to respond to Complainant's Second or Third Demand.

V. STATEMENT OF VIOLATIONS

42. Title 46 U.S.C. Section 41102 provides:

A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.

46 U.S.C. §41102(c)

43. Title 46 U.S.C. Section 40501 states:

Each common carrier and conference shall keep open to public inspection in an automated tariff system, tariffs showing all its rates, charges, classifications, rules, and practices between all points or ports on its own route and on any through transportation route that has been established.

46 U.S.C. §40501(a)(1). Section 40501 also states that “[a] tariff under subsection (a) shall ... state the level of compensation, if any, of any ocean freight forwarder by carrier or conference; ...” 46 U.S.C. §40501(b)(3).

44. Title 46 U.S.C. Section 40904 states that compensation to common carriers to ocean transportation intermediaries is appropriate “only when the ocean freight forwarder has certified in writing that it holds an ocean transportation intermediary’s license (if required under section 40901 of this title [46 U.S.C. §40901]) and has (1) engaged, booked, secured, reserved, or contracted directly with the carrier or its agent for space aboard a vessel or confirmed the availability of that space; and (2) prepared and processed the ocean bill of lading, dock receipt, or other similar document for the shipment.” 46 U.S.C. §40904(a). Section 40904 also states that “[a]n ocean freight forwarder may not receive compensation from a common carrier for a shipment in which the ocean freight forwarder has a direct or indirect beneficial interest.” 46 U.S.C. §40904(c).

45. Title 46 CFR Section 515.42 provides:

When a common carrier's tariff provides for the payment of compensation, such compensation shall be paid on any shipment forwarded on behalf of others where the forwarder has provided a certification as prescribed in paragraph (c) of this section ...

46 CFR §515.42(b). Section 515.42 also provides:

When a licensed freight forwarder is entitled to compensation, the forwarder shall provide the common carrier with a certification which indicates that the forwarder has performed the required services that entitle it to compensation. The required certification may be provided electronically by the forwarder or may be placed on one copy of the relevant bill of lading, a summary statement from the forwarder, the forwarder's compensation invoice, or as an endorsement on the carrier's compensation check. Electronic certification must contain confirmations by the forwarder and the carrier identifying the shipments upon which forwarding compensation may be paid. Each forwarder shall retain evidence in its shipment files that the forwarder, in fact, has performed the required services enumerated on the certification. The certification shall read as follows:

The undersigned hereby certifies that neither it nor any holding company, subsidiary, affiliate, officer, director, agent or executive of the undersigned has a beneficial interest in this shipment; that it is the holder of valid FMC License No. 2, issued by the Federal Maritime Commission and has performed the following services:

- (1) Engaged, booked, secured, reserved, or contracted directly with the carrier or its agent for space aboard a vessel or confirmed the availability of that space; and
- (2) Prepared and processed the ocean bill of lading, dock receipt, or other similar document with respect to the shipment.

46 CFR §515.42(c). Section 515.42 also provides:

No licensed freight forwarder, or employee thereof, shall accept compensation from a common carrier which is different from that specifically provided for in the carrier's effective tariff(s).

46 CFR §515.42(d). Section 515.42 also provides:

A licensed freight forwarder may not receive compensation from a common carrier with respect to any shipment in which the forwarder has a beneficial interest or with respect to any shipment in which any holding company, subsidiary, affiliate, officer, director, agent, or executive of such forwarder has a beneficial interest.

46 CFR §515.42(i).

46. Title 46 U.S.C. Section 41305 states that if a Complaint is filed with the FMC "within the period specified in section 40301(a) of this title ... the Federal Maritime Commission shall

direct the payment of reparations to the complainant for actual injury caused by violation of this part [46 U.S.C. §40101, *et seq.*]." 46 U.S.C. §41305 (b). Section 41305 also provides that prevailing parties may be awarded reasonable attorney fees in any action brought under section 41301. 46 U.S.C. §41305 (e).

47. Respondent has violated Title 46 U.S.C. Section 41102 and Title 46 CFR Section 515.42 by refusing to compensate Complainant for the freight forwarding services performed on Ford shipments placed on vessels owned/and or operated by Respondent and/or its agents or affiliates, for which Respondent received freight charges, according to the terms of the Respondent's applicable tariffs in effect when such shipments were made, and when demands were made by Complainant to Respondent for such compensation.

VI. DAMAGES

48. As a result of Respondent's aforementioned and continuing violations of the Ocean Shipping Reform Act, Complaint has sustained, and continues to sustain, injuries and damages in excess of \$252,776.89.
49. The total demand specified in the Third Demand of \$252,776.89 does not include all compensation owed by Respondent to Complainant as of January 13, 2016, as the Third Demand did not include all bills of lading for shipments processed prior to that date.
50. Furthermore, amount of damages sustained by Complaint continues to accrue as Complainant places further Ford Shipments on vessels owned and/or operated by Respondent and/or its agents or affiliates, and Respondent continues to withhold compensation owed to Complainant.
51. Complainant will supplement its claimed damages as further demands for compensation are

made upon Respondent.

VII. PRAYER FOR RELIEF

52. Statement regarding ADR procedures: Alternative dispute resolution procedures were not used prior to filing this Complaint, and Complainant has not consulted with the Commission Dispute Resolution Specialist about utilizing alternative dispute resolution.

53. Complainant seeks an award of reparations of \$252,776.89 for actual injuries caused to it by Respondent as a result of the aforementioned violations, plus further amounts as may be demonstrated after further demands for compensation are made on Respondent as a result of the violations to the same applicable statutes and regulations.

54. Complainant also seeks an award of interest on all compensation owed to it by Respondent from the date any such compensation became due.

55. Complainant also seeks an award for all reasonable attorney's fees related to bringing this Complaint.

56. Should evidence show that respondent has also violated Title 46 U.S.C. §41103(3), Complaint seeks a payment of additional amounts, not exceeding twice the amount of any award for injuries.

57. Complainant requests that a hearing in this matter be held in Philadelphia, Pennsylvania, or, alternatively, in Washington, D.C.

58. Complainant seeks such other relief or award as the FMC shall determine.

Respectfully submitted,

LAW OFFICES OF THOMAS J. WAGNER, LLC

Date: January 28 2016

By: _____

Thomas J. Wagner, Esquire
Law Offices of Thomas J. Wagner, LLC
8 Penn Center, 6th Floor
1628 John F. Kennedy Blvd.
Philadelphia, PA 19103
tjwagner@wagnerlaw.net
Tel.: 215.790.0761
PA Bar ID No. 52876
Attorney for Complainant, D. F. Young, Inc.

COMMONWEALTH OF PENNSYLVANIA)
) ss:
COUNTY OF CHESTER)

I am the Chief Financial Officer of the corporate Complainant, D. F. Young, Inc., in the action herein. I have read the annexed Complaint and know the contents thereof, and the same are true and correct to the best of my knowledge. As to those matters therein which are stated to be alleged upon information and belief, I believe them to be true based upon facts, records, and/or other pertinent information in Complainant's files.

Subscribed and sworn to before me, a notary public in and for the Commonwealth of
Pennsylvania, County of Chester, this 13th day of JANUARY, 2016.



My Commission Expires: 9/11/2017
Commission No.: 1251897

EXHIBIT CC

EXHIBIT DD

Gabriel Major

From: Paul Keane <pkeane@cckd-ny.com>
Sent: Wednesday, August 10, 2016 12:07 PM
To: Thomas J. Wagner
Cc: Joseph De May; Barbara McCardle; Gabriel Major
Subject: RE: Updated demand for compensation

Tom,
NYK finally got back to me. They agree with my recommendation that DFY does not have to keep making demands, However, is it possible that DFY can provide us with quarterly totals re the quarterly claim and the total claim without documentary support? In other words just numbers so we have an idea what the amount of the claim is?

Best regards,
Paul

Paul M. Keane
Cichanowicz Callan Keane & De May, LLP
50 Main Street, Suite 1045
White Plains, NY 10606
212-344-7042/43 (T)
212-344-7285 (F)
pkeane@cckd-ny.com
WEBSITE: <http://www.cckd-ny.com/>

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-----Original Message-----

From: Thomas J. Wagner [mailto:TJWagner@wagnerlaw.net]
Sent: Tuesday, August 02, 2016 3:32 PM
To: Paul Keane <pkeane@cckd-ny.com>
Cc: Joseph De May <jdemay@cckd-ny.com>; Barbara McCardle <BMcCardle@wagnerlaw.net>; Gabriel Major <GMajor@wagnerlaw.net>
Subject: Re: Updated demand for compensation

Let me know if NYK agrees. Got a lot of docs to go through very quickly if they don't!

As for questions raised, Thursday anytime works. Call cell 267 249 8110 please so I can move around without missing.
Thx tom

Tom Wagner
LAW OFFICES of THOMAS J. WAGNER, LLC

> On Aug 2, 2016, at 3:21 PM, Paul Keane <pkeane@cckd-ny.com> wrote:
>
> Tom,
> I have no problem re DFY not needing to keep making demands for compensation. Let just get confirmation from NYK in this regard. I will get back to you this week.

> In regard to the mediation are you available for a telcon on Thursday (I am out of town tomorrow) re:

- > 1. Place of mediation
- > 2. With or without clients
- > 3. Briefs or no briefs.

>

> Regards,

> Paul

>

> Paul M. Keane

> Cichanowicz Callan Keane & De May, LLP

> 50 Main Street, Suite 1045

> White Plains, NY 10606

> 212-344-7042/43 (T)

> 212-344-7285 (F)

> pkeane@cckd-ny.com

> WEBSITE: <http://www.cckd-ny.com/>

>

> CONFIDENTIAL: This message contains information from the law firm of Cichanowicz Callan Keane & De May, LLP which may be privileged, confidential and exempt from disclosure under applicable law. If you have received this message in error, please inform us immediately and delete all copies of it from your system.

>

> -----Original Message-----

> From: Thomas J. Wagner [mailto:TJWagner@wagnerlaw.net]

> Sent: Tuesday, August 02, 2016 3:14 PM

> To: Joseph De May <jdemay@cckd-ny.com>; Paul Keane <pkeane@cckd-ny.com>

> Cc: Barbara McCardle <BMcCardle@wagnerlaw.net>; Gabriel Major <GMajor@wagnerlaw.net>

> Subject: Updated demand for compensation

>

> Fellows. Do we have an agreement that our client need not keep making written demands for compensation for FF fees for each specific sailing/vessel shipments. The last demand we made appears to have a last sailing date of 2/26/2016. Do we have to keep doing that or can we agree that we seek compensation for all shipments. Rather avoid that expense for something that is already known; but. . . Please let me know.

> Thx tom

>

> Tom Wagner

> LAW OFFICES of THOMAS J. WAGNER, LLC

EXHIBIT EE

BEFORE THE U.S. FEDERAL MARITIME COMMISSION

DOCKET NO.: 16-02

D. F. YOUNG, INC.,

1235 Westlakes Drive
Suite 255
Berwyn, PA 19312

COMPLAINANT

v.

NYK LINE (NORTH AMERICA) INC.,

300 Lighting Way
5th Floor
Secaucus, NJ 07094

RESPONDENT

AMENDED VERIFIED ANSWER

Paul M. Keane
Joseph De May, Jr.
Cichanowicz Callan Keane & De May, LLP
50 Main Street, Suite 1045
White Plains, NY 10606
(212) 344-7042
Attorneys for Respondent

Respondent, NYK LINE (NORTH AMERICA) INC. ("Respondent"), files this Amended Verified Answer to the Verified Complaint of Complainant, D. F. YOUNG, INC., and alleges as follows:

I. COMPLAINANT

1. Denies knowledge or information sufficient to form a belief as to the truth of the allegations of para. 1.
2. Denies knowledge or information sufficient to form a belief as to the truth of the allegations of para. 2.
3. Denies knowledge or information sufficient to form a belief as to the truth of the allegations of para. 3.
4. Denies knowledge or information sufficient to form a belief as to the truth of the allegations of para. 4.

II. RESPONDENT

5. Admits the allegations of para. 5 except denies that it is organized or exists under the laws of the State of New York.
6. Admits that Nippon Yusen Kaisha is an ocean common carrier (VOCC) as defined and described in 46 U.S.C. §§ 40102(6) and 40102(17), as well as 46 C.F.R. §§ 515.26 and (l), and that Respondent is the U.S. representative of Nippon Yusen Kaisha in North America, and except as so admitted, denies the truth of the allegations of para. 6.

III. JURISDICTION

7. Denies the truth of the allegations of para. 7.

IV. STATEMENT OF FACTS AND MATTERS COMPLAINED OF

A. TARIFFS

8. Admits that Respondent had in effect its Tariff NYKS-156 and except as so admitted denies the truth of the allegations of para. 8.

9. Denies the truth of the allegation of para. 9 and specifically denies that the language quoted therein was ever in NYK Tariff NYKS-156.

10. Denies the truth of the allegation of para. 10 and specifically denies that the language quoted therein was ever in NYK Tariff NYKS-156.

11. Denies the truth of the allegation of para. 11 and specifically denies that the language quoted therein was ever in NYK Tariff NYKS-156.

B. COMPLAINANT FREIGHT FORWARDING

12. Denies the truth of the allegations of para. 12.

13. Admits that on or about April 2, 2015, Complainant and Respondent entered into an agreement to allow Complainant on behalf of Ford to print bills of lading remotely and except as so admitted denies the truth of the allegations of para. 13; and specifically denies that "transportation of shipments from Ford" was to be "by Complainant."

14. Admits that there were negotiations in regard to the Agreement and further admits that the Agreement sets forth the complete understanding of the parties, and except as so admitted denies the truth of the allegations of para. 14 and specifically denies that Respondent ever agreed to pay Complainant brokerage or freight forwarder compensation.

15. Admits that the Agreement included a clause which stated inter alia "this Agreement sets forth the complete understanding and agreement of the parties and can be amended only in writing signed by the party against whom enforcement is sought." Except as so admitted denies the truth of the allegations of para. 15.

16. Denies the truth of the allegations of para. 16 and specifically denies that Complainant performed any freight forwarding services on behalf of Respondent.

17. Admits that Complainant remotely printed bills of lading related to the 4 shipments on behalf of Ford and except as so admitted denies the truth of the allegations of para. 17.

18. Denies knowledge or information sufficient to form a belief as to the truth of allegations of para. 18.

19. Denies knowledge or information sufficient to form a belief as to the truth of allegations of para. 19.

20. Denies the truth of the allegations of para. 20 and specifically denies that the Complainant performed any freight forwarding services on behalf of Respondent in regard to the Ford shipments.

21. Denies the truth of the allegations of para. 21.

22. Admits that Respondent has provided no compensation to Complainant for freight forwarding services and except as so admitted denies the truth of the allegations of para. 22; and specifically denies that Complainant performed any freight forwarding services on behalf of Respondent.

C. DEMAND FOR COMPENSATION

First Demand for Compensation

23. Admits that on or about September 24, 2015, Complainant, through its counsel, served Respondent with a Demand ("The First Demand") for freight forwarding compensation in the amount of \$129,592.28 plus 1.25% of any accessorial charges, port charges, heavy lift and long length charges, origin receiving charges, destination delivery charges, rental fee and/or surcharges related to certain Ford shipments placed on Respondent's vessel pursuant to the terms of Rule 9 of Respondent's applicable tariff, 46 C.F.R §§ 515.41 515.42 and 46 U.S.C §§ 40904 and 41102 et seq., and except as so admitted denies the truth of the allegations of para. 22; and specifically denies that Complainant was entitled to such freight forwarding compensation.

24. Admits that a Certification by Denise Traynor was enclosed with the First Demand and except as so admitted denies the truth of the allegations of para. 24; and specifically denies that Complainant was entitled to freight forwarding compensation.

25. Admits that with the First Demand was Complainant's F.M.C. Ocean Transportation Intermediary/Ocean Freight Forwarder License and except as so admitted denies the truth of the allegations of para. 25; and specifically denies that Complaint was entitled to freight forwarder compensation.

26. Admits that a copy of Complainant's License for Customhouse Broker from the U.S. Treasury Department, Bureau of Customs was enclosed with the First Demand and except as so admitted denies the truth of the allegations of para. 26; and specifically denies that Complainant is entitled to freight forwarding compensation.

27. Admits that copies of individual bills of lading for shipments for which complainant sought compensation along with reference charts for each shipment and a

separate summary of the applicable total charges and freight forwarding charges for those bills of lading was enclosed with the First Demand and except as so admitted denies the truth of the allegations of para. 27; and specifically denies that Complainant was entitled to freight forwarding compensation.

28. Admits the truth of the allegations of para. 28.

Second Demand for Compensation

29. Admits that a Second Demand for Compensation was made by Complainant on or about December 22, 2015 and except as so admitted denies the truth of the allegations of para. 29; and specifically denies that Complainant was entitled to freight forwarding compensation.

30. Admits that the Second Demand included the previously demanded sum of \$129,592.28 and subsequent alleged freight forwarding charges in the amount of \$73,588.58 for a total of \$203,180.86 together with 1.25% of any accessorial charges, port charges, heavy lift and long length charges, origin receiving charges, destination delivery charges, rental fee and/or surcharges related to certain Ford shipments placed on Respondent's vessel not referenced in plaintiff's First Demand and except as so admitted denies the truth of the allegations of para. 30; and specifically denies that Complainant is entitled to such freight forwarding compensation since it did not perform freight forwarding services on behalf of Respondent.

31. Admits that all additional shipments for which freight forwarder compensation was sought in the Second Demand took place within 6 months of the service of the Second Demand and except as so admitted denies the truth of the allegations of para. 31; and specifically denies that Complainant is entitled to freight

forwarder compensation since it did not perform freight forwarding services on behalf of Respondent.

32. Admits that a Certification by Denise Traynor was enclosed with the Second Demand and except as so admitted denies the truth of the allegations of para. 27; and specifically denies that Complainant was entitled to freight forwarding compensation.

33. Admits that with the Second Demand was Complainant's F.M.C. Ocean Transportation Intermediary/Ocean Freight Forwarder and except as so admitted denies the truth of the allegations of para. 33; and specifically denies that Complaint was entitled to freight forwarder compensation.

34. Admits that copies of individual bills of lading for shipments for which Complainant sought compensation along with reference charts for each shipment and a separate summary of the applicable total charges and freight forwarding charges for those bills of lading was enclosed with the Second Demand and except as so admitted denies the truth of the allegations of para. 27; and specifically denies that Complainant was entitled to freight forwarding compensation.

Third Demand for Compensation

35. Admits that a Third Demand for Compensation was made by Complainant on or about January 13, 2016 and except as so admitted denies the truth of the allegations of para. 35; and specifically denies that Complainant was entitled to freight forwarding compensation.

36. Admits that the Third Demand included the previously demanded sum of \$203,180.86 and subsequent alleged freight forwarding charges in the amount of

\$49,596.03 for a total of \$252,776.89 together with 1.25% of any accessorial charges, port charges, heavy lift and long length charges, origin receiving charges, destination delivery charges, rental fee and/or surcharges related to certain Ford shipments placed on Respondent's vessel not referenced in plaintiff's First or Second Demand and except as so admitted denies the truth of the allegations of para. 36; and specifically denies that Complainant is entitled to such freight forwarding compensation since it did not perform freight forwarding services on behalf of Respondent.

37. Admits that all additional shipment which freight forwarder compensation was sought in the Third Demand took place within 6 months of the service of the Third Demand and except as so admitted denies the truth of the allegations of para. 37; and specifically denies that Complainant is entitled to freight forwarder compensation since it did not perform freight forwarding services on behalf of Respondent.

38. Admits that a Certification by Denise Traynor was enclosed with the Third Demand and except as so admitted denies the truth of the allegations of para. 38; and specifically denies that Complainant was entitled to freight forwarding compensation.

39. Admits that with the Third Demand was Complainant's F.M.C. Ocean Transportation Intermediary/Ocean Freight Forwarder and except as so admitted denies the truth of the allegations of para. 39 and specifically denies that Complaint was entitled to freight forwarder compensation.

40. Admits that copies of individual bills of lading for shipments for which Complainant sought compensation along with reference charts for each shipment and a separate summary of the applicable total charges and freight forwarding charges for those bills of lading was enclosed with the Third Demand and except as so admitted

denies the truth of the allegations of para. 40 and specifically denies that Complainant was entitled to freight forwarding compensation.

41. Admits the truth of the allegations of para. 41 but specifically denies that Complainant was entitled to freight forwarding compensation.

V. STATEMENT OF VIOLATIONS

42. Admits the truth of the allegations of para. 42 except denies that it violated the statute.

43. Admits the truth of the allegations of para. 43 except denies that it violated the statute.

44. Admits the truth of the allegations of para. 44 except denies that it violated the statute.

45. Admits the truth of the allegations of para. 45 except denies that it violated the regulation.

46. Admits the truth of the allegations of para. 46 except denies that it violated the statute.

47. Admits that it has refused to compensate the Complainant and except as so admitted denies the truth of the allegations of para. 47; and specifically denies that Complainant performed any freight forwarding service, that it was entitled to freight forwarding compensation, and that it violated the statute or regulation.

VI. DAMAGES

48. Denies the truth of the allegations of para. 48.

49. Denies knowledge or information sufficient to form a belief as to the truth of the allegations of para. 49.

50. Denies the truth of the allegations of para. 50.

51. Denies knowledge or information sufficient to form a belief as to the truth of the allegations of para. 51.

VII. PRAYER FOR RELIEF

52. Admits that ADR procedures were not used prior to filing of the Complaint and except as so admitted denies the truth of the allegations of para. 52.

53. Denies the truth of the allegations of para. 53.

54. Denies the truth of the allegations of para. 54.

55. Denies the truth of the allegations of para. 55.

56. Denies the truth of the allegations of para. 56.

57. Respondent requests that a hearing in this matter be held in the Metropolitan New York area, or alternatively, in Washington, D.C.

58. Denies the truth of the allegations of para. 58.

VIII. AFFIRMATIVE DEFENSES

First: The Complainant did not perform any freight forwarding services and is not entitled to any of the compensation it claims.

Second. The compensation claimed by Complainant would unjustly enrich it since Complainant performed no freight forwarding services.

Third: The compensation claimed by complainant is unsupported by consideration since Complainant performed no freight forwarding services.

Fourth: The shipments at issue in this case were Service Contract shipments, not tariff shipments and therefore do not qualify for freight forwarder compensation under 46 CFR 515.42 or otherwise. The Service Contract did not provide for freight forwarder compensation and neither incorporated nor was governed by any tariff provision providing for freight forwarder compensation.

Respondent asks that verified complaint be dismissed and that it be awarded its costs and disbursements incurred in the defense of this case.

Dated: White Plains, NY, September 30, 2016

Respectfully Submitted,
CICHANOWICZ CALLAN KEANE & D e MAY, LLP
50 Main Street, Rm. 1045, White Plains, NY 10606
Tel: (212) 344-7042 | Email: pkeane@cckd-ny.com
Attorneys for Respondent

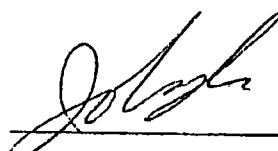
By: Paul M. Keane
Paul M. Keane

VERIFICATION

STATE OF NEW JERSEY, COUNTY OF HUDSON, SS.:

John Grbic, being duly sworn, deposes and says:

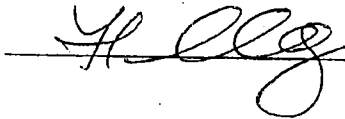
I am the Senior Director of Ro-Ro Trade for Respondent, NYK Line (North America) Inc. I have read the foregoing answer and know its contents. The same is true and correct to the best of my knowledge. As to those matters stated to be alleged on information and belief, I believe them to be true based upon facts, records, and/or other pertinent information in Respondent's files.

 9/30/16

John Grbic

Subscribed and sworn to

Before me on September 30, 2016

_____

HYUNAH K. CHUNG
NOTARY PUBLIC, State of New Jersey
No. 2417911
Qualified in Bergen County
My Commission Expires Feb. 28, 2017

EXHIBIT FF

**PUBLIC VERSION -
Confidential materials
excluded.**

**PUBLIC VERSION -
Confidential materials
excluded.**

**PUBLIC VERSION -
Confidential materials
excluded.**

EXHIBIT GG

**PUBLIC VERSION -
Confidential materials
excluded.**

**PUBLIC VERSION -
Confidential materials
excluded.**

EXHIBIT HH

**PUBLIC VERSION -
Confidential materials
excluded.**

**PUBLIC VERSION -
Confidential materials
excluded.**

**PUBLIC VERSION -
Confidential materials
excluded.**

